

4.	AMENDT VS. LUDDEN 2025-01500147	MOTION TO ENFORCE SETTLEMENT Plaintiff Wayne Amendt’s Motion to Enforce Settlement is GRANTED. <u>Legal Standard:</u> Code of Civil Procedure section 664.6 states, “(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” <i>Hernandez v. Board of Education</i> (2004) 126 Cal.App.4th 1161, 1175–1176 (cleaned up), explains: “Prior to the enactment of section 664.6, a party seeking to enforce a settlement agreement had to file a new action alleging breach of contract and seeking either contract damages or specific performance of the settlement terms, or alternatively had to supplement the pleadings in a pending case. Although a summary judgment motion could be filed based on the newly pleaded contract or specific performance claim, summary judgment could be granted only if the opposing party failed to raise a triable issue of fact. Expeditious enforcement of a settlement agreement was therefore not always possible. Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit. [Citation] The power of the trial court under Code of Civil Procedure section 664.6, however, is extremely limited. Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment [citations], nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” <u>Application:</u> Plaintiff asserts he reached a settlement with Defendant Charles Ludden in which Defendant agreed to pay \$407,500.00 no later than 1/12/26. (Ex. 2, ¶ 1.) The agreement stipulates to entry of judgment in that amount if Defendant failed to timely payment to Plaintiff’s counsel. (Ex. 2, ¶ 2.) Plaintiff’s counsel declares the agreement was executed by Defendant on 12/17/25 but Defendant failed to make the required payment as of 1/22/26. (LeVine Decl., ¶¶ 3-4.)
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		Defendant has not filed an opposition to the motion. Plaintiff has shown the parties entered a binding settlement agreement which included a stipulation to enter judgment pursuant to Code of Civil Procedure section 664.6 if Defendant did not comply. Defendant failed to make timely payment. Therefore, the motion is granted.
5.	SHANNON VS. BRIONES 2025-01503515	MOTION TO QUASH DISCOVERY SUBPOENA Plaintiff's Motion to Quash Deposition Subpoenas for Employment Records is CONTINUED to 8/11/26 at 9:00 a.m., in Dept. C32. As an initial matter, Defendants' opposition was untimely as it was filed and served on 6/23/26 but due on 6/16/26 pursuant to Code of Civil Procedure section 1005, subdivision (b). The court has discretion to accept or reject late-filed or served papers. (<i>See Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker</i> (2016) 2 Cal.App.5th 252, 262 [citing Cal. Rules of Court, rule 3.1300, subd. (d)]; <i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 765 [citations omitted].) The Court exercises its discretion and will accept the late filed opposition. On 6/24/26, Plaintiff filed a declaration stating the untimely opposition "substantially prejudiced Plaintiff because it effectively eliminated Plaintiff's ability to prepare and file a meaningful reply before the hearing." (ROA 57; Vogt Decl., ¶ 7.) As such, Plaintiff requests the Court not consider the opposition or allow Plaintiff additional time to file a reply. (Vogt Decl., ¶¶ 9-10.) The Court grants Plaintiff's request and continues the motion to allow Plaintiff the additional time to file its Reply. The Reply will be due 5 court days before the hearing. No further briefing other than the Reply is permitted.
6.	KRUPP VS. CALIFORNIA AUTOMOBILE INSURANCE COMPANY 2023-01370850	MOTION FOR LEAVE TO FILE CROSS-COMPLAINT Defendant California Automobile Insurance Company ("CAIC") moves for leave to file a cross-complaint against R.S. Builders is GRANTED. CAIC's Request for Judicial Notice of Exhibits 1 and 2 is GRANTED. A defendant can cross-complain against a codefendant or third person not yet a party to the action only if the cause of action asserted "(1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Code Civ. Proc. §428.10, subd. (b).)